

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

May 28, 2019

Due to the Memorial Day holiday, the Governing Body of the City of Cheyenne instead met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook (arriving at 6:10 p.m.), Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Absent: Ken Esquibel. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

EXPRESSION OF APPRECIATION TO THE 2018-2019 MAYOR’S YOUTH COUNCIL AND STATE OF THE YOUTH ADDRESS. Jan Spires, Youth Alternatives and staff advisor to the Mayor’s Youth Council, expressed appreciation to Youth Council members, recognized their year in service and introduced Julia Horst, chair for the Mayor’s Youth Council, who presented the State of the Youth Address. Ms. Horst reviewed projects and programs the group participated in throughout the year. She expressed appreciation to Mayor Orr, Ms. Spires and fellow Youth Council members. Mayor Orr expressed appreciation to the Youth Council and expressed the importance of the Unaccompanied Students Initiative. Ms. Spires introduced and presented awards to the following members: Alexis Arp, Maggie Black, Ashen Doty, Darby Downham, Raegan Downham, Connor Fertig, Dylan Fertig, Julia Horst, Marie Lucas, Emily Lucero, Lars Quinlivan, Kenitra Shanks, Dominick Singleton and Marty Zhang.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Dr. Rinne, and pursuant to support received by Mr. Cook and Mr. Case, Agenda Item #21 was removed from the Consent Agenda. Upon request by Dr. Rinne, and pursuant to support received by Mr. Cook and Mr. Case, Agenda Item #26 (e) was removed from the Consent Agenda. Mr. White moved to approve remaining Consent Agenda items, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body present.

Mr. Case moved to suspend the rules by bringing forward Agenda Item #25 (g) before Agenda Item #6 to allow for consideration of the Cable Franchise Agreement between the City of Cheyenne, Wyoming, and Spectrum Pacific West, LLC l/k/a Charter Communications, seconded by Mr. Shanor. Motion carried. Voting “yes” - all members of the governing body present.

Cable Franchise Agreement between the City of Cheyenne, Wyoming, and Spectrum Pacific West, LLC l/k/a Charter Communications. Bob Duchon, River Oaks Communications, provided a review of the franchise agreement explaining it is a non-exclusive contract which would allow other cable providers to come into Cheyenne. Mr. Duchon advised they are working to find solutions for the City and Charter Communications and areas of the agreement that are being fine-

tuned are the government access channel including updating the return line and aspects of the customer service center. Mr. Duchen advised Charter isn't agreeable to amendments at this time and provided a substitute amendment to the governing body. Ben Rowland, Davis & Cannon, LLP, reported details are being finalized with ongoing negotiations and suggested approval of the substitute amendment. Mr. Rowland explained if the agreement is postponed, a month to month agreement will occur due to the current agreement lapsing. Reporting for Finance Committee, Mr. White moved to approve, seconded by Mr. Case. Mr. Case moved to postpone for two weeks, seconded by Mr. Shanor. It was noted the amendment was not distributed to all members of the governing body. Comments were made related to postponing the item vs. approving a substitute amendment. Mr. Rowland clarified the procedures of postponing the agreement and approving a substitute amendment. Motion to postpone carried. Voting "yes" - all members of the governing body present with the exception of Mayor Orr and Mr. Laybourn voting "no".

[CA] Minutes from Regular Meeting of the Governing Body on May 13, 2019. Motion (per Consent Agenda) carried.

Mr. Roybal moved to approve payment of vouchers as presented, seconded by Mr. Case. Upon inquiry, Robin Lockman, City Treasurer and Jason Sanchez, Deputy Director, Community Recreation and Events provided information available on vouchers payable to the following: JM Rodent Control (rodent control at Dinosaur Park – area around Pride Park) and Sundahl, Powers, Kapp and Martin LLC (professional legal services for Fight the Blight Initiative funded from the general fund). Responding to an inquiry related to the voucher payable to Hansen, Allen & Luce Inc., Amy Allen, City Engineer, explained the City is under contract for review of ordinances pertaining to drainage issues and confirmed she received directive to enter into the contract. Ms. Allen reviewed the scope of work as it pertains to the voucher in question (College and Storey (Summit) Drainage Investigation) and advised a final solution based report will contain recommendations. Discussion included: setting precedence for reviewing issues in subdivisions, relation of the contract and a recently failed resolution calling for a drainage study in the area and the importance of City/County relationship moving forward to address drainage. Upon inquiry, Ms. Allen explained the drainage investigation will review pre and post development of the area. Mayor Orr advised the intent is to bring changes before the governing body. Mr. Shanor moved to divide the question to allow for separate action on the voucher payable to Hansen, Allen & Luce Inc. in the amount of \$5,972.84 for College and Storey (Summit) Drainage Investigation, seconded by Dr. Rinne. Mayor Orr noted the motion was not debatable. Motion to divide the question carried. Voting "yes" – all members of the governing body present with the exception of Mr. Laybourn voting "no". Dr. Rinne raised a point of order related to making a negative motion (motion to deny the voucher). Comment was made related to circumventing the governing body approval process. Ms. Allen clarified a contract with Hansen, Allen & Luce Inc. has been executed and the voucher is for a portion of work that has been conducted. Mayor Orr commented on the decision to enter into the contract, explained it isn't her intention to circumvent the governing body approval process and requested review of prior City Council proceedings related to the drainage study. Upon inquiry, Alessandra McCoy-Fakelman, Deputy City Attorney, provided information on the following: breach in contract if affiliated bills aren't paid, termination clause allowing the contract to be terminated and the voucher process, most contracts are for items that have been authorized by the governing body, contracts under \$35,000.00 can be executed administratively,

possibility of revising purchasing requirements and if the contract is terminated, invoices will have to be paid for work that has already been completed. Comments were made in support of the contract and how it relates to recent severe weather events, the importance of having a third-party review of drainage concerns and support for paying the voucher. Ms. Allen advised recommended solutions for drainage issues will show affiliated repair costs. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Case, Mr. Luna, Dr. Rinne and Mr. Shanor voting “no”. Motion to approve remaining vouchers carried. Voting “yes” – all members of the governing body present with the exception of Dr. Rinne voting “no”.

Mayor Orr opened a public hearing for an application for a winery liquor license application filed with the City Clerk’s Office for GrapesNwine, LLC d/b/a Vintages, 309 North American Rd., Cheyenne, Wyoming. Upon inquiry, Kris Jones, City Clerk, provided information related to the proposed business stating the applicant could manufacture wine and dispense the wine for on-premises and limited off-premises personal consumption. There being no further comments or input and purpose of the hearing having been met, Mayor Orr closed the hearing and referred the application to Finance Committee.

ORDINANCE – 3rd READING – Amending the City of Cheyenne’s Solid Waste Fee Schedule. Vicki Nemecek Public Works Director, recommended approval of the proposed annual 5% rate increase. Reporting for Finance Committee, Mr. White moved to approve on third and final reading, seconded by Mr. Roybal. Support was voiced for straight fees for services instead of a basic rate fee schedule. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Cook, Mr. Luna and Mr. Shanor voting “no”. (#4270)

ORDINANCE – 3rd READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from County CB Community Business to CB Community Business for all of FW Subdivision, Laramie County, Wyoming (located northeast of the intersection of College Drive and Southwest Drive). Glen Connor, adjacent property owner, advised Dr. Kay Sheehan, fellow adjacent property owner, could not be present to voice her opposition and provided a letter from her to the governing body. Mr. Connor explained he has concerns with area flooding that is occurring, noting Ms. Sheehan’s property to the north is currently flooded. Mr. Connor requested consideration of drainage issues before future development takes place. Reporting for Public Services Committee, Dr. Rinne moved to approve on third and final reading, seconded by Mr. Shanor. Gene MacDonald, agent for the applicant, provided drainage information regarding the current and proposed detention pond locations for FW Subdivision, stated there isn’t much drainage in the current location and there are no signs of erosion on Broken Arrow Rd. from water runoff from FW Subdivision. Mr. MacDonald advised the property was previously annexed into the City and it is required to be City zoned, noting the zoning classification will remain CB - Community Business. Motion carried. Voting “yes” – all members of the governing body present. (#4271)

ORDINANCE – 2nd READING – Approving and establishing revised water and sewer rates, tap and system development fees, administrative fees, service charges and penalties, and septic and commercial waste dump rates, as recommended by the Board of Public Utilities. Randy

Hays, Board of Public Utilities, explained there is a recommended 3% water rate increase that will allow for multiple projects over the course of the next several years and loan payoffs which will in turn generate more revenue. Mr. Hays advised a 5% increase for sewer rates is proposed to assist with funding a Dry Creek project and several other revenue generating projects. He provided approximate increase amounts for residential and commercial customers. Per inquiry, Mr. Hays explained the BOPU master plan is updated every 10 years and is due to be updated in 2023. Mr. White moved to approve on second reading, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Appropriating moneys for the City of Cheyenne, Wyoming for the various purposes in conducting the municipal government of said City and fixing the amount of general and special taxes as part of the revenue required to meet the said appropriation, all for the Fiscal Year beginning July 1, 2019 and ending June 30, 2020. Stephanie Lowe, President, Cheyenne Public Employees Association (CPEA), voiced support for the contract with Novo Benefits for negotiation assistance on the employee health insurance policy with Blue Cross Blue Shield of Wyoming resulting in no premium increases. Joe Dougherty requested information on the newly proposed Compliance Division, projected revenue reductions, number of City employees and voiced concerns on not offering employees wage increases. Upon inquiry, Eric Fountain, Mayor’s Chief of Staff, explained the Compliance Division will consist of 18.4 positions from Risk Management, Nuisance, ADA Compliance and the Building Department. He explained it is not a requirement that the nuisance officer be uniformed Police Department position. Robin Lockman, City Treasurer, explained upon inquiry certain revenue line items haven’t seen losses, but instead were over-estimated for the 2019 fiscal year. Mr. Fountain spoke about the previous 3% pay for performance incentive and reported it wasn’t included in the proposed current budget for fiscal year 2020. Reporting for Committee of the Whole, Mr. White moved to approve, seconded by Mr. Shanor. Mr. Shanor moved to amend by amendment dated 5-24-19, seconded by Mr. Luna. Mr. Shanor explained the amendment moves \$18,000 out of the Police Patrol budget line item into Cheyenne Fire & Rescue budget relating to Cheyenne Frontier Days overtime expenses and by moving the previously budgeted 9% health insurance increases from each department into a miscellaneous account intended for funding a proposed self-insured line item. Motion to amend carried. Voting “yes” – all members of the governing body present. Mr. Shanor moved to amend by an “omnibus budget amendment” containing 11 separate amendments, seconded by Mr. Luna. Mr. Shanor provided an overview of the proposed amendment which includes the following changes: Subtract \$140,000.00 from City Council Line item (#1), place \$90,000.00 into the Engineering line item for right-of-way infrastructure improvement program (#2), place \$50,000.00 in the Engineering line item to create a fund for necessary studies evaluating prospective 6th Penny projects to be approved by the Governing Body (#3), subtract \$20,000.00 from Public Works (#4), subtract \$4,000.00 from Community Recreation and Events (#5), subtract \$130,566.00 from Community Recreation and Events and eliminate two new proposed positions (Aquatics and Maintenance Tech) (#6), place \$297,500.00 into the Economic/Community Development line item - \$190,000.00 to the Downtown Development Authority (DDA) and \$107,500.00 to the Cheyenne Animal Shelter for Animal Control services (#7), place \$24,000.00 into Community Recreation and Events for professional services (#8), place \$40,000.00 into Special Projects for an art project in partnership with Arts Cheyenne (#9), freeze all general fund positions from hiring of any current vacant positions and any future vacated

positions until the savings of the proposed amendments (\$206,934.00) is met (#10) and cap overall full-time employees at 578.1 for FY 2020 (#11). Vicki Nemecek, Public Works Director, advised leaving 5-6 Street and Alley positions vacant would restrict community services. Greg Hoggatt, Chief of Cheyenne Fire and Rescue, inquired about the proposed hiring freeze and how it pertains to Firefighters. Mr. Shanor explained Firefighters would be excluded due to the City's contractual agreement with the Fire Union. Teresa Moore, Community Recreation and Events Director, provided information on current Aquatics staff and a proposed new position and a request for a new Parks maintenance employee. Astrid, Plains Hotel, expressed appreciation for the proposed Downtown Development Authority (DDA) funding. Alessandra McCoy-Fakelman, Deputy City Attorney, expressed concern with the proposed hiring freeze and how it relates to the currently vacant City Attorney position. Anthony Ortiz, local business owner, expressed concern regarding current operations of the DDA, explained he requested information related to DDA funding sources and requested more program oversight. Charles Bloom, Planning and Development Director, expressed concern regarding the proposed hiring freeze relating to a proposed Planner II position in his department, explaining it is budgeted to begin in October. Ms. Lockman provided information on projected time frame to recuperate the proposed \$206,934.00 needed to lift the hiring freeze which could include contingency funds from the Mayor's budget and the cost of proposed new City website. Vicki Duggar, DDA Director, expressed appreciation for the proposed DDA funding and advised they recently approved moving DDA reserves into the façade improvement program. Carman Hess, Wyoming Home, spoke in favor of the DDA program and funding. Brian Kozak, Chief of Police, expressed concern regarding the proposed amendment and how it relates to freezing the department's positions. Mr. Shanor explained the intent is to freeze all positions until savings is realized. Chief Kozak provided information on current and proposed vacancies and absences due to deployments and expressed the need to hire officers immediately as the hiring and training process takes a year. Aaron Wilmarth, President, Police Protective Association, expressed further concern related to an urgent projected staff shortage that will affect community safety and noted the City of Casper recently approved a new officer pay scale that will result in competition for maintaining and recruiting officers. Ms. Lowe spoke in opposition of the proposed cap on employees as it prevents growth and urged trust in directors to fund positions based on their budgets. Ms. Moore provided information on budgeted adjustments that were made in order to fill new needed positions. Amy Allen, City Engineer, requested clarification on proposed budget amendments relating to a right-of-way infrastructure improvement program and a fund for studies to evaluate prospective 6th Penny projects. Mr. Shanor advised they are generalized to give discretion to Ms. Allen to administer and when proposals are submitted for the right-of-way infrastructure program, a match must be provided. Ms. Nemecek advised miscellaneous concrete funds are available in the 1% budget line item. Comments were made related to the proposed fund for studies to evaluate prospective 6th Penny projects being a new concept, and the importance of a committee to review the projects. Ms. Lockman requested detailed dollar amounts related to the proposed freezing of positions in order to balance the budget. Comments were made related to meeting the proposed \$206,934.00 in savings with various funding mechanisms including reserves, miscellaneous concrete funds and funding designated for The Hole property. Discussion continued and included: DDA proposed funding, remaining FY 2018-2019 budgeted funds that can potentially be rolled over, Youth Alternatives vacant position and how it relates to grant requirements, savings utilized to fund DDA and one-time Animal Shelter improvements and alternative mechanisms to fund one-time improvements.

Following a brief recess, Mayor Orr reconvened the meeting at 8:12 p.m. Further discussion continued and included: Support and opposition of the proposed amendments and possibility of further amendments. Mayor Orr expressed concern relating to how the proposed amendment may send a message to candidates for employment. Motion to amend carried. Voting “yes” – all members of the governing body present with the exception of Mr. Laybourn and Mayor Orr voting “no”. Mr. Shanor moved to amend by applying \$90,000.00 from line item 1% sales tax 2019-2022 towards a right-of-way infrastructure improvement program, leaving remaining language (#2), adding “full-time” to #10, 3rd line and by adjusting #12 by subtracting \$90,000.00 from \$206,934.00 which is \$116,934.00, seconded by Mr. Roybal. Ms. Nemecek commented on the proposed right-of-way infrastructure improvement program and how it relates to City code requirements stating curb, gutter and sidewalk must be maintained by adjacent property owners. Chief Kozak advised he will delay a Captain promotion that would result in other promotions resulting in a \$70,000.00 savings and requested the hiring freeze be removed from police officers. Comments were made related to the proposed right-of-way infrastructure program and how it relates to City code provisions and required adjustments to the amendment can be made accordingly. Motion to amend carried. Voting “yes” all members of the governing body present with the exception of Mr. Laybourn voting “no”. It was noted the minimum revenue guarantee (MRG) for air service wasn’t included in the budget, with Ms. Lockman confirming the exclusion of the revenue. Mr. Case moved to amend by moving \$650,000.00 from reserves to the MRG line item for air service, seconded by Mr. Shanor. Friendly amendment was offered by Dr. Rinne and accepted by Mr. Case and Mr. Shanor, as the maker and second to the motion to amend, to add “up to” before \$650,000. Ms. Lockman provided information on unassigned and unrestricted general fund reserves amounts and explained \$250,000 has been spent to date and doesn’t include the current quarter billings. Upon inquiry, Ms. McCoy-Fakelman advised a resolution rescinding the original resolution outlining funding for The Hole would be needed to utilize the funding differently. Main motion to amend carried. Voting “yes” – all members of the governing body present with the exception of Mr. Laybourn voting “no”. Motion as amended four times carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, Section 5.1.3 Official Zoning Map, and Section 5.6.2 PUD – Planned Unit Development District, of the Unified Development Code, changing the zoning classification from CB Community Business and County A-1 Agricultural and Rural Residential to Harmony Valley Planned Unit Development for portions of the S1/2 of Section 7 and the S1/2 of the NE1/4 of Section 7, Township 13 North, Range 66 West, of the 6th P.M., City of Cheyenne Laramie County, Wyoming (as described in Exhibit A and generally located northeast of the intersection of West College Drive and Parsley Boulevard. Kelly Hafner, CivilWorx, agent for the applicant, provided information on the request stating a PUD is desirable as aspects of different zone types can be added into one document. Mr. Hafner advised there are concerns relating to placement of required landscaping (trees) involving underground utilities and the applicant is proposing 5’ attached sidewalks instead of 6’ detached sidewalks. He explained they can provide cash-in-lieu instead of required landscaping and could place trees in open space areas or on lots and proposed lower volume residential roads involving an interval curb and gutter section. Dr. Rinne moved to approve on second reading with Planning Commission recommendations # 3 & 4 to be renumbered as # 1 & 2 and updating Exhibit B prior to 3rd reading

on June 10, 2019, seconded by Mr. Luna. Comments were made related to street landscaping requirements and concern for proposed attached sidewalks relating to pedestrian safety. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Luna, Mayor Orr and Dr. Rinne voting “no”.

ORDINANCE – 1st READING – Defining the terms and conditions of employment for non-uniformed employees of the City of Cheyenne for fiscal year 2019-2020 – referred to Finance Committee. (Sponsor – Mr. White)

ORDINANCE – 1st READING – Defining the terms and conditions of employment for sworn officers of the Police Department for fiscal year 2019-2020 – referred to Finance Committee. (Sponsor – Mr. White)

ORDINANCE – 1st READING – Amending various sections of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne, Wyoming – referred to Finance Committee. (Sponsor – Mr. White)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Christensen Park, situated in a portion of the SW¼ NE¼, Section 36, Township 14 North, Range 67 West of the Sixth Principal Meridian, Cheyenne, Laramie County, Wyoming (located at the southwest corner of Talbot Court and Cribbon Avenue) (Postponed from 05-13-19). Dr. Rinne moved to adopt, seconded by Mr. Roybal. Dr. Rinne moved to postpone to June 10, 2019, seconded by Mr. Roybal. Dr. Rinne advised the land title which was originally transferred in the 1950’s contains inaccuracies and updates are required. Motion to postpone carried. Voting “yes” – all members of the governing body present.

[CA] RESOLUTION – For Governing Body approval of a three-year Bronze Boot Sponsor relationship between Cheyenne Frontier Days and Miller/Coors for 2019-2021. Motion (per Consent Agenda) carried. (#5991)

[CA] RESOLUTION – Authorizing submission of an application to the Wyoming Department of Transportation for a Wyoming Rural Public Transportation Program Grant to provide the local match for operating funds for the City of Cheyenne for its Transit Program, as authorized by 49 U.S.C. § 5311. Motion (per Consent Agenda) carried. (#5992)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for US 30 Business Plaza, Second Filing, a replat of Lots 1, 2, 5, 6, 7 and 8, Block 1 and all of Lots 2, 3, and 4, Block 2, and all of Tim Tam Street, and all of the 16’ alley located in Block 1, Countryside Addition, together with Lots 7, 8 and 9, Block One, US 30 Business Plaza, City of Cheyenne, Laramie County, Wyoming (located southwest of the intersection of Countryside Avenue and Whitney Road). Motion (per Consent Agenda) carried. (#5993)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for FW Subdivision, 2nd Filing, a replat of all of Lot 1, Block 1, FW Subdivision, Laramie County, Wyoming (located northeast of the intersection of College Drive and Southwest Drive). Dr. Rinne

moved to adopt, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body present. (#5994)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign an Access Easement for Texas Roadhouse of Cheyenne, LLC to build and maintain a vehicular and pedestrian bridge on and over a City drainage channel for the purpose of accessing an accessory parking lot located at the south east corner of Edgewater Avenue and Bluegrass Circle. Motion (per Consent Agenda) carried. (#5995)

[CA] RESOLUTION – Reappropriating the Fiscal Year 2019 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 & §16-4-113 – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Authorizing the expansion of the Capitol North Historic District and the addition of one hundred seventeen (117) structures to the Contributing Structures List maintained by the City’s Planning Office – referred to Public Services Committee. (Sponsor – Dr. Rinne)

Memorandum of Understanding between the City of Cheyenne and the Downtown Development Authority. Astrid, DDA and Plains Hotel, spoke in favor of the MOU. Vicki Dugger, DDA Director, spoke in support of the MOU that has framework she believes is beneficial to all parties. Dr. Rinne moved to approve, seconded by Mr. White. Dr. Rinne moved to amend by substitute dated 05-24-19 #1 which changes the deadline, seconded by Mr. Shanor. Dr. Rinne advised rationale for change in date is to provide enough time to obtain information requested which will be available in October. Motion to amend carried. Voting “yes” – all members of the governing body present. Mr. Shanor moved to amend by substitute #2 which includes the additions of Sections 6 and 7 and includes the date amendment approved in substitute #1. Ms. McCoy-Fakelman advised Section 6 addresses landscaping services and Section 7 incorporates comments based on maintenance responsibilities in the downtown district. Motion to amend carried. Voting “yes” – all members of the governing body present. Mr. Shanor moved to amend Section 5 (a) relating to sales tax to baseline year Jan 1- 2019 – Dec. 31 2019, and Section 5 (b) by adding “by June 30, 2019”, seconded by Dr. Rinne. Motion to amend carried. Voting “yes” – all members of the governing body present. Discussion topics included: Support for the MOU, possible future revisions, DDA Board information, concerns regarding meeting financial reporting requirements and the importance of providing financial reports, financial reports reviewed at monthly meetings and City Council liaison involvement. Ms. Dugger explained she was not aware of financial reporting requirements and has set a work session with an attorney to review state and city requirements. Mr. White advised he was also not aware of the requirement as City Council liaison and will now be forwarding the reports to colleagues. Ms. McCoy-Fakelman advised she believes the code requires a report to be forwarded to the full governing body. Inquiry was made related to receiving previously requested financial reports for the past 18 months that incurred a fee. It was noted comments were not germane to the topic. Main motion as twice amended carried. Voting “yes” – all members of the governing body present. (#7002)

[CA] Professional Services Agreement between the City of Cheyenne, Cheyenne Metropolitan Planning Organization, and Kimley-Horn and Associates, Inc., Denver, CO, for the PlanCheyenne

update: 2019-2045 (MPO Federal funding). Motion (per Consent Agenda) carried (amount not to exceed \$352,924.00). (#7003)

[CA] Department of the Air Force license to the City of Cheyenne, Wyoming, to use property located on F.E. Warren Air Force Base, Wyoming, for a parking lot to be used by patrons attending the 2019 Cheyenne Frontier Days celebration. Motion (per Consent Agenda) carried. (#7004)

[CA] Agreement between the City of Cheyenne and Cheyenne Frontier Days, Inc., for land owned by the United States Department of the Airforce located at F.E. Warren Air Force Base to be used and operated as a parking lot for public transportation services during the 2019 Cheyenne Frontier Days celebration. Motion (per Consent Agenda) carried. (#7005)

[CA] Agreement between the City of Cheyenne and Cheyenne Frontier Days, Inc., for buses owned by the Laramie County School District Number One to be used and operated for public transportation services during the 2019 Cheyenne Frontier Days celebration. Motion (per Consent Agenda) carried. (#7006)

[CA] Memorandum of Understanding between the City of Cheyenne, Cheyenne Frontier Days, Inc. and Laramie County School District Number One, for buses owned by the Laramie County School District Number One to be used and operated for public transportation services during the 2019 Cheyenne Frontier Days celebration. Motion (per Consent Agenda) carried. (#7007)

[CA] Professional Services Agreement between the City of Cheyenne, City of Cheyenne Board of Public Utilities and McGee, Hearne and Paiz, LLC, Cheyenne, to audit the annual financial statements of the City of Cheyenne, Wyoming (General fund). Motion (per Consent Agenda) carried (amount not to exceed \$330,000.00). (#7008)

[CA] Industrial and Economic Development Agreement between the City of Cheyenne and the Cheyenne/Laramie County Corporation for Economic Development (LEADS) (General fund) – referred to Finance Committee.

[CA] Contract Modification #2 to use agreement, Contract No. 5963 between the City of Cheyenne, Wyoming and Level 3 Communications, LLC, Broomfield, CO, for limited use of the public right-of-way for the installation of fiber optic communications systems and setting a fee for that use. Motion (per Consent Agenda) carried (revenue to City). (#5963)

[CA] Contract Modification #1 to Contract No. 6481 for Surface Transportation Urban Program Subrecipient Agreement between the City of Cheyenne and the Wyoming Department of Transportation for the Prairie Avenue/Frontier Mall Drive Project (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$241,118.00). (#6481)

[CA] Amendment No. 2 to City Contract No. 6732 and State Lease No. 8-09466 between the City of Cheyenne and the State of Wyoming, Administration & Information, General Services Division for the lease of parking spaces located at the Cox Parking Structure to be used by the State. Motion (per Consent Agenda) carried (revenue to City). (#6732)

Contract Modification #4 to Contract No. 6743 between the City of Cheyenne and River Oaks Communications Corporation, Centennial, CO, for professional services relating to the Charter Communications Cable Television Franchise Agreement and Wireless Communication Facilities Regulations for small cells (2015-2018 1% Sales Tax). Alessandra McCoy-Fakelman, Deputy City Attorney, advised the modification includes financial adjustments and changes associated dates and requested approval. Mr. White advised there was no recommendation on the item from Finance Committee. Mr. Roybal moved to approve, seconded by Dr. Rinne. Support for the item was voiced and comment was made related to the complexity of small cell issues and the consultant's subject knowledge. Motion carried. Voting "yes" – all members of the governing body present. (#6743)

Renewal of Contract #6836 between the City of Cheyenne and Blue Cross Blue Shield for group health insurance benefits for City employees. Mr. White moved to approve, seconded by Mr. Luna. Upon inquiry, Greg Hoggatt, Chief of Cheyenne Fire and Rescue, explained there is a Joint Powers Board that contracts ambulance service and services are provided through that company. Chief Hoggatt provided information relating to pricing and insurance coverage involving ambulance services provided by AMR and advised when the current contract is terminated, the City and County go out for bid for other service options. Dianna Madvig, Novo Benefits, advised if the City seeks to be self-funded next fiscal year, a difficulty may still be present regarding ambulance services. Motion carried. Voting "yes" – all members of the governing body present. (#6836)

[CA] Contract Modification #1 to Contract No. 6885 between the City of Cheyenne, Engineering Department, and Simon Contractors, Cheyenne, to extend the 20th Street Pavement Rehabilitation Project (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$275,671.54). (#6885)

[CA] Contract Modification #2 to Contract No. 6918 between the City of Cheyenne and FCI Constructors of Wyoming, LLC, Cheyenne, for construction of the New Municipal Court Building Project (General Fund Reserves/Specific Purpose Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$8,784,758.00). (#6918)

[CA] Contract Modification #1 to Contract No. 6970 between the City of Cheyenne and Kaiser Corporation d/b/a Kaiser Flooring, Cheyenne, for the Municipal Building 2nd Floor Carpet Replacement Project to extend the completion date to December 31, 2019 (Capitol Improvement Plan (CIP) funding). Motion (per Consent Agenda) carried. (#6970)

[CA] Contract Modification #2 to Contract No. 6660 between the City of Cheyenne and WYCO Recycling LLC, Cheyenne, to change the business name – referred to Finance Committee.

[CA] Contract Modification #1 to Professional Services Agreement #6785 for the Christensen Railroad Overpass Corridor Project (Specific Purpose Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #E-22-19 for furnishing one (1) four-wheel steering street sweeper for the City of Cheyenne, Street & Alley Division (2015 – 2018 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid from Hardline Equipment, Commerce City, CO, in an amount not to exceed \$258,149.00).

[CA] Consideration of Bid #E-24-19 for furnishing twenty-six (26) sets of SWAT Team Ballistic Protection Platforms for the Cheyenne Police Department (Homeland Security Grant). Motion (per Consent Agenda) carried (accepted bid from Adamson Police Products, Frederick, CO, in an amount not to exceed \$94,733.60).

[CA] Consideration of Bid #E-25-19 for furnishing one (1) Gasoline Powered Rider Sweeper for the City of Cheyenne, Sanitation Division (Sanitation Small Equipment Fund). Motion (per Consent Agenda) carried (accepted bid from Grainger, Ft. Collins, CO, in an amount not to exceed \$80,000.00).

[CA] Consideration of Bid #E-26-19 for furnishing new tablet computers, docking stations and keyboards for the Cheyenne Police Department (2015 – 2018 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid from Dell Technologies, Round Rock, TX, in an amount not to exceed \$189,044.25).

[CA] Consideration of Bid #E-27-19 for furnishing synthetic double jacket aggressive fire attack hose and automatic nozzles for aggressive interior firefighting for the City of Cheyenne, Cheyenne Fire & Rescue Department (General Fund Reserves). Motion (per Consent Agenda) carried (accepted bid from CoPro Emergency Fire Product (EFP), Eastlake, CO, in an amount not to exceed \$49,255.00).

[CA] Consideration of Bid #S-16-19 for a contract between the City of Cheyenne and JTL Group, Inc. d/b/a Knife River, Cheyenne, for the FY 2019 Miscellaneous Concrete Repairs Project (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (accepted the bid from JTL Group, Inc. d/b/a Knife River, Cheyenne, in an amount not to exceed \$475.169.35) (#7009)

[CA] Consideration to purchase Anti-Vehicle Barriers for the Community Recreation & Events Department from Meridian Rapid Defense Group, Pasadena, CA (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$158,007.00)

[CA] Consideration of Bid #E-21-19 for furnishing new computers and operating systems for the City of Cheyenne, Information Technology Division (2015 – 2018 1% Sales Tax) – referred to Finance Committee.

[CA] Social club liquor license application filed with the City Clerk's office for Mary Godfrey Playhouse, 2706 E. Pershing Blvd., Cheyenne, WY. Motion (per Consent Agenda) carried.

[CA] Restaurant liquor license application filed with the City Clerk's office for Adeli, LLC d/b/a Railyard Café – Coffee Haus & Eatery, 1620 E. Pershing Blvd., Cheyenne, WY. Motion (per Consent Agenda) carried.

Designation of Official Voting Delegate and Alternate Delegate for the City of Cheyenne at the June 13, 2019 Wyoming Association of Municipalities Summer Convention Business Meeting to be held in Sheridan, Wyoming. Mr. White moved to designate Dr. Rinne as Official Voting Delegate and Mr. Laybourn as Alternate Delegate, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body present.

Core Development Incentivization Program Fiscal Year 2019 Quarterly Report pursuant to City Code 15.08.040. Charles Bloom, Planning & Development Director, provided information regarding the program and advised the program expires June 30th of this year. Mr. Bloom reported at this time staff is not recommending the program continue as it was utilized in a reactive response rather than as an incentive to develop. He further explained applicants would request a refund after their development was complete instead of prior to, and reported development is happening downtown whether the program exists or not. Ms. Lockman advised this program was not accounted for in proposed FY 2020 budget. Mr. White moved to acknowledge receipt of the report, seconded by Mr. Shanor. Motion carried. Voting “yes” – all members of the governing body present.

Re-appointments of Allan Cunningham and James Murphy to the Board of Public Utilities. Mr. Roybal moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mayor Orr who did not vote (mayoral appointments).

Appointments of Marsha Dial and Charity Henning to the Mayor’s Council for People with Disabilities. Mr. Shanor moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mayor Orr who did not vote (mayoral appointments).

Announcement was made of Public Hearing to be held June 10, 2019 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming for a proposed sale of undeveloped public property described as a portion, consisting of approximately 1.46 acres, of Lot 2, Block 1, Pat Griffin Park, containing 5.5 acres, more or less, City of Cheyenne, Laramie County, Wyoming, with an appraised value of \$111,000.00, to Moreland Properties, LLD.

Announcement was made of Public Hearing to be held June 10, 2019 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming for proposed budgets for the City of Cheyenne and Board of Public Utilities for Fiscal Year 2020.

Under other business:

Upon inquiry, Vicki Nemecek, Public Works Director, advised the property referenced in agenda item #29 (e) is located along Missile Drive and is currently vacant.

Mayor Orr provided clarification on the drainage study for the Thomas Heights area. Upon inquiry, Amy Allen, City Engineer, reported she was directed by the Mayor to have the study conducted and advised the purpose of the study is to evaluate potential options for drainage issues in the Thomas Heights area and to provide information that would assist the City in revising the current code requirements to help with eliminating future issues involving drainage with new developments. Comments were made regarding a previous failed attempt to address the drainage issues associated with the Thomas Heights area relating to City and County involvement.

There being no further business to come before the governing body, the meeting was officially adjourned at 9:31 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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